

TENTATIVE RULING

Case: **Bryte Avenue Associates, L.P. v. Mondragon**
Case No. CV2026-2066

Hearing Date: **August 3, 2026** **Department Two** **1:30 p.m.**

Defendants Alicia Mondragon and Terry Guilford's unopposed demurrer to plaintiff Bryte Avenue Associates, L.P.'s complaint for unlawful detainer based on defective notice is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e), 1161; Civ. Code § 1946.2, subd. (c).) Although defendants argue that plaintiff's notice did not give defendants the opportunity to cure the breach under Code of Civil Procedure section 1161(3), the notice attached to the complaint is based on the failure to pay rent under subdivision (2) of section 1161. (Complaint, ¶ 6, Exhibit A.) Further, defendants fail to establish that, based on the face of the pleading or from matters judicially noticeable, Civil Code section 1946.2 subdivision (c) applies to their tenancy.

Defendants' demurrer to plaintiff's complaint for unlawful detainer based on failure to state facts sufficient to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have not shown that plaintiff's complaint does not state a cause of action for unlawful detainer. (See, e.g., *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see also Complaint, ¶ 6, Exhibit A.)

Defendants' demurrer to plaintiff's complaint for unlawful detainer based on uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The complaint is not unclear such that defendants cannot reasonably respond. (See *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Defendants Alicia Mondragon and Terry Guilford shall file their answer(s) no later than **August 10, 2026**. (Cal. Rules of Court, rule 3.1320(g), 1.10(a).)

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.